

26STCP00622 26STCP00622

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Case Number: 26STCP00622 Hearing Date: July 9, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Defendant John Vargas's Demurrer with Motion to Strike; and Defendants Wesley Mitchell and Anna Snihs's Demurrer with Motion to Strike.

Both Demurrers are sustained to each cause of action without leave to amend. The Motions to Strike are denied as moot.

BACKGROUND

Plaintiff Brett Stettner (Plaintiff) filed this action against John Vargas (Vargas), Wesley Mitchell (Mitchell), and Anna Snihs (Snihs) (collectively, Defendants).

The Complaint alleges the following. Vargas and Mitchell sat on the board of directors of the Hilldale Terraces Homeowners Association (the HOA), Vargas as its president. Snihs is not alleged to have served on the board. To fund repairs to a townhome owned by Mitchell and Snihs, Vargas and Mitchell caused the HOA to levy a special assessment of roughly \$31,000 against each of the six member townhomes and threatened foreclosure against owners who did not pay. (Compl. ¶¶ 13-16.) Plaintiff alleges that these threats caused his sister, Tiffany N. Stettner, to take her own life on October 27, 2023, and that her death led to the decline and death of his mother, Suzi G. Stettner, on February 16, 2024. (Compl. ¶¶ 17-18.)

The causes of action are: (1) Wrongful Death; (2) Misuse or Misappropriation of Funds; (3) Selective Enforcement and Breach of Fiduciary Duty; (4) Unjust Enrichment; (5) Harassment; and (6) Loss of Consortium.

Vargas filed a Demurrer to each cause of action and a Motion to Strike. Mitchell and Snihs separately filed a Demurrer to each cause of action and a Motion to Strike. The two demurrers and the two motions to strike raise substantially the same grounds, and the Court considers them together. Plaintiff did not file an Opposition to either.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “‘A demurrer tests the pleading alone, and not the evidence or the facts alleged.’ [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) [s]trike any irrelevant, false, or improper matter inserted in any pleading....” (Code Civ. Proc., § 436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

ANALYSIS

I. First Cause of Action for Wrongful Death

Defendants demur to the first cause of action on the grounds that it fails to state sufficient facts. The claim rests on two deaths, and the Court addresses each.

“‘The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the pecuniary loss

suffered by the heirs. [Citations.]’ [Citation.]” (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1263 (Quiroz).)

A. Wrongful Death of Tiffany

N. Stettner

First, Defendants argue that the wrongful death claim is time-barred as to Tiffany Stettner.

““A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]” [Citation.]’ [Citation.]” (Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.) The applicable period is fixed by the gravamen of the claim, not the form of the action or the relief demanded. (Gutierrez v. Tostado (2025) 18 Cal.5th 222, 231.)

An action for wrongful death must be brought within two years of the death. (Code Civ. Proc., § 335.1.) Here, the Complaint alleges that Tiffany died on October 27, 2023. (Compl. ¶ 17.) Plaintiff filed this action on February 17, 2026, more than two years later. The claim is therefore time-barred on its face.

Additionally, Plaintiff lacks standing to assert a wrongful death claim for Tiffany. “The wrongful death statute ‘limits the right of recovery to a class of persons who, because of their relation to the deceased, are presumed to be injured by his [or her] death [citation] and bars claims by persons who are not in the chain of intestate succession. [Citations.]’ [Citation.]” (Quiroz, supra, 140 Cal.App.4th at p. 1263) A wrongful death action may be brought only by the heirs the statute specifies, and where the decedent leaves surviving issue, a sibling is not among them. (Code Civ. Proc., § 377.60, subd. (a).) The Complaint alleges that Tiffany left a surviving daughter, Heavenly. (Compl. ¶ 17.) The wrongful death claim for Tiffany’s death belongs to her daughter, not to Plaintiff. Accordingly, the demurrers to the first cause of action are sustained without leave to amend to the extent it seeks recovery for the wrongful death of Tiffany N. Stettner.

B. Wrongful Death of Suzi G. Stettner

A wrongful death claim requires a wrongful act or neglect that causes the death.

The Complaint alleges no facts connecting any conduct of Defendants to the death of Suzi Stettner. It alleges that Suzi died on February 16, 2024, following the “rapid downturn” brought on by Tiffany’s suicide. (Compl. ¶ 18.) Elsewhere, it alleges that Suzi’s death was “contributed to, and caused,” by employees of a health care center. (Compl. ¶ 52.) These allegations attribute Suzi’s death to causes other than Defendants’ conduct, and the Complaint pleads no facts linking Defendants to that death. The Court concludes that the Complaint fails to allege causation as to the wrongful death of Suzi Stettner. As Plaintiff fails to explain how this defect can be corrected, the demurrers to the first cause of action are sustained without leave to amend.

II. Estates’ Causes of Action

Defendants demur to the second through fifth causes of action on the grounds that Plaintiff lacks standing.

A lack of standing is a jurisdictional defect that requires dismissal. (*Cummings v. Stanley* (2009) 177 Cal.App.4th 493, 501.) The Complaint alleges that the HOA levied a special assessment against the six member townhomes. (Compl. ¶¶ 14, 20.) It does not allege that Plaintiff owned a home within the HOA, was subject to the assessment, or paid any part of it, and the owners it identifies do not include him. Any injury from the assessment or the handling of HOA funds ran to the assessed owners, not to Plaintiff personally.

To the extent these claims belong to the estates of Suzi G. Stettner or Tiffany N. Stettner, they must be prosecuted by the estate’s personal representative or successor in interest. (Code Civ. Proc., § 377.30.) A non-attorney may not represent an estate in pursuing claims against third parties. (Bus. & Prof. Code, § 6125; *Estate of Sanchez* (2023) 95 Cal.App.5th 331, 339-344.) Plaintiff appears in propria persona and may not assert the estates’ claims in that capacity. Indeed, Plaintiff was already aware of this fact, as the Complaint specifically alleges that his previous actions against Defendants were dismissed without prejudice for this very

reason. (Compl. ¶ 12.) Accordingly, the demurrers to the second, third, fourth, and fifth causes of action are sustained without leave to amend.

III. Sixth Cause of Action for Loss of Consortium

California does not recognize a cause of action for a child's loss of a parent's consortium. (*Borer v. American Airlines, Inc.* (1977) 19 Cal.3d 441, 444-445.) In *Borer*, the nine children of a woman injured by a falling light fixture sought damages for the loss of their mother's society, companionship, affection, and guidance, and the California Supreme Court held that no such cause of action exists, affirming the judgment that sustained a demurrer without leave to amend. (*Id.* at pp. 444-445, 451.) Likewise, in *Baxter v. Superior Court* (1977) 19 Cal.3d 461, 466, the California Supreme Court held that a parent has no claim for the loss of an injured child's consortium. No California authority recognizes a claim for loss of consortium of a sibling.

Here, Plaintiff seeks damages for the loss of the consortium of his mother, Suzi G. Stettner, and his sister, Tiffany N. Stettner. (Compl. ¶¶ 50-51.) The law recognizes neither a claim for loss of a parent's consortium nor one for loss of a sibling's consortium. Accordingly, the demurrers to the sixth cause of action are sustained without leave to amend.

CONCLUSION

Both Demurrers are sustained to each cause of action without leave to amend. The Motions to Strike are denied as moot.